Judge Richard Oberholzer

DEPT C15

Department C15 hears Law and Motion matters on Mondays at 1:45 pm

Court Reporters: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- **Civil Court Reporter Pooling; and**
- **For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.**

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 10:00 am in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc*. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C15 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") also available at https://www.occourts.org/media-relations/aci.html will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so by providing notice of in-person appearance to the court and all other parties five (5) days in advance of the hearing. (see Appearance Procedures, section 3(c)1.)

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS

Date: June 8, 2026

#	Case Name	Tentative
1	**Benson vs. Lemonade, Inc.** **2025-01491797**	**1. Motion to Withdraw as Counsel** **2. Case Management Conference** Attorneys Michelle M. Meyers, Lisa J. Nicholes, and Jordan A. Goulet from Singleton Schreiber, LLP move to be relieved as counsel of record for plaintiffs Alexander Benson and Cortney Benson. The Motion fails to comply with California Rules of Court, Rule 3.1362. "A notice of motion and motion to be relieved as counsel under … must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel--Civil (form MC-051)." (Cal. Rules Ct., rule 3.1362, subd. (a).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052)." (Cal. Rules Ct., rule 3.1362, subd. (c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules Ct., rule 3.1362, subd. (d).) Moving attorneys did not file and serve the required form MC-051, MC-052, and MC-053 in compliance with Rule 3.1362. **Tentative Ruling:** The Motion is DENIED without prejudice to refile the Motion. Moving attorneys to give notice.

2	**Dang vs. America West Lender Services, LLC** **2025-01477410**	**1. Demurrer to Amended Complaint** **2. Case Management Conference** Defendants 5692 Karen Ave LLC and Edward Balta's demur to Plaintiff's First amended Complaint. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) David Khoury, counsel for Defendants 5692 Karen Ave LLC and Edward Balta, states he sent Plaintiff's counsel a letter requesting a meet and confer. (Khoury Decl., ¶ 5, Ex. 1.) Plaintiff's counsel stated he was available to meet and confer but did not respond to a follow-up email from Defendants' counsel regarding availability. (Khoury Decl., ¶¶ 6-8.) As of the filing of the demurrer, Defendants' counsel has not heard back from Plaintiff's counsel regarding a meet and confer. (Khoury Decl., ¶ 9.) This does not satisfy the meet and confer requirement. **Tentative Ruling:** The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. Demurrer to Plaintiff's First amended Complaint is

		CONTINUED to June 29, 2026, at 1:45 p.m. in Department C15.
3	**Funding Capital Corp LLC vs. Garfield Langmuir – Logan** **2024-01437501**	**1. Motion for Leave to File Amended Complaint** **2. Case Management Conference** Continued to 07/13/2026, 1;45pm, Department C15
4	**Kirshner vs. 3 Day Blinds LLC** **2025-01527621**	**1. Demurrer to Complaint** **2. Motion to Strike** **<u>Demurrer</u>** Defendant 3 Day Blinds, LLC's demurs to the Complaint. Balsam v. Trancos, Inc. (2012) 203 Cal.App.4th 1083 and Hypertouch, Inc. v. ValueClick, Inc. (2011) 192 Cal.App.4th 805 provide an in depth discussion of California Business & Professions Code § 17529.5 and the CAN-SPAM Act: "This Act supersedes any statute, regulation, or rule of a State or political subdivision of a State that expressly regulates the use of electronic mail to send commercial messages, except to the extent that any such statute, regulation, or rule prohibits falsity or deception in any portion of a commercial electronic mail message or information attached thereto." (15 U.S.C., § 7707, subd. (b)(1) [CAN-SPAM Act].) Thus, the CAN-SPAM Act preempts state law regarding commercial email advertising except where there is false or deceptive messaging. Here, Plaintiff alleges the email's header was false or deceptive. (Compl., ¶ 16(a).) Thus, Plaintiff's claims are not preempted. Defendant next argues the allegations are insufficient to constitute falsity or deception pursuant to California Business & Professions Code § 17529.5. Defendant claims there is no requirement the "From" field identify the sender's domain. A single email with a traceable domain name which does not identify the sender or the advertiser, even if the domain name is " 'random,' 'varied,' 'garbled,' and 'nonsenscial' when viewed in conjunction with

		domain names used in other email,' " does not constitute a false or deceptive header under Section 17529.5. (*Kleffman v. Vonage Holdings Corp.* (2010) 49 Cal.4th 334, 346-347.) "The email violates the "forged header" prong of California Business & Professions Code § 17529.5(a)(2) because the "From" line falsely purports to identify the sender as "hwedxafzlgamfhoy@makelaio.com," which is a nonsensical address that is materially misleading. The domain name and display identity do not accurately reflect the actual advertiser or the true initiator of the commercial email, but instead obscure their identity behind an unrelated or deceptive source. This constitutes a forged, misrepresented, or falsified header. Under § 17529.5(a)(2), such a forged header is unlawful as it is used to evade detection, mislead consumers, and disguise the origin of the advertisement." (Compl., ¶ 16a.) Plaintiff argues in opposition, "makelaio.com" is a fake domain which is not registered and does not identify the actual sender. However, Paragraph 16a does not seem to allege this. Plaintiff did not allege "makelaio.com" is not a registered domain and is thus untraceable. Therefore, it is not clear the Complaint is alleging more than a single nonsensical header. **Tentative Ruling:** Defendant's demurrer to the Complaint is sustained with 20 days leave to amend. **<u>Motion to Strike</u>** Defendant 3 Day Blinds, LLC's moves to Strike Plaintiff's prayer for punitive damages. Defendant has not provided any authority which prohibits a punitive damages award in a claim under California Business & Professions Code § 17529.5. Therefore, at this time, the Court declines to prohibit punitive damages absent any supporting authority. "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Additionally, "[i]n passing on the

correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Ibid*.)

A demand for punitive damages for the commission of any tort requires more than the mere allegation of the "oppression, fraud, and malice" language found in Civil Code section 3294. (See *Perkins v Superior Court* (1981) 117 Cal.App.3d 1, 6-7.) "[F]acts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) The facts alleged must show the defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (*Silberg v. California Life Ins. Co.* (1974) 11 Cal.3d 452, 462.)

Section 3294, subdivision (c) defines malice, oppression and fraud as follows: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

Plaintiff has failed to plead adequate facts to support a claim for punitive damages. Plaintiff has failed to plead any facts to support their conclusory claim Defendant intended in to injure Plaintiff. Plaintiff points to Paragraphs 2, 16a, and 18 in the Complaint. However, none of those paragraphs make any factual allegations as to Defendant's intent. Next Plaintiff claims violating a civil code section constitutes despicable conduct. However, this would implicate punitive damages in any civil action and the Court declines to interpret Section 3294 so liberally.

Tentative Ruling: Defendant's motion to strike punitive damages is GRANTED.

5	**Mohler vs. COUNTRY OAKS PARTNERS, LLC** **2024-01406588**	**1. Demurrer to Amended Complaint** **2. Demurrer to Amended Complaint** **3. Motion to Strike Complaint** **4. Case Management Conference** **MOTION NO. 1.** Defendant Sun Mar Management Services' demurs to the first cause of action alleged in the Second Amended Complaint ("SAC") filed by Plaintiffs Alicia Mohler, by and through her Successor-in-Interest Deborah Mohler; and Deborah Moher. *First Cause of Action for Dependent Adult Abuse:* In ruling on Defendant's prior demurrer to the First Amended Complaint ("FAC"), the Court found that Plaintiffs adequately alleged all elements of the claim except for ratification by officers, directors, or managing agents under Civil Code section 3294, subdivision (b). To the extent a plaintiff seeks to hold a corporate defendant liable for the acts or omissions of its employees, the plaintiff must satisfy the standards set forth in Civil Code section 3294(b). (Welf. and Inst. Code, § 15657(c).) Welfare & Institutions Code section 15657, subdivision (c) states: "The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer." Civil Code Section 3294, subdivision (b) states: "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages

		are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294(b).) The SAC sufficiently alleges ratification in paragraphs 10, 11, 12, 13 and 17. **Tentative Ruling:** The demurrer to the first cause of action is OVERRULED. Moving Defendant to give notice. **MOTION NO. 2:** Defendant Sun Meridian Management Services LLC's demurs to the first cause of action alleged in the Second Amended Complaint filed by Plaintiffs Alicia Mohler, by and through her Successor-in-Interest Deborah Mohler; and Deborah Moher. *First Cause of Action for Dependent Adult Abuse:* In ruling on Defendant's prior demurrer to the First Amended Complaint ("FAC"), the Court found that Plaintiffs adequately alleged all elements of the claim except for ratification by officers, directors, or managing agents under Civil Code section 3294, subdivision (b). To the extent a plaintiff seeks to hold a corporate defendant liable for the acts or omissions of its employees, the plaintiff must satisfy the standards set forth in Civil Code section 3294(b). (Welf. and Inst. Code, § 15657(c).) Welfare & Institutions Code section 15657, subdivision (c) states: "The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer." Civil Code Section 3294, subdivision (b) states: "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance

		knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(b).) The SAC sufficiently alleges ratification in paragraphs 10, 11, 12, 13 and 17. **Tentative Ruling:** The demurrer to the first cause of action is OVERRULED. Moving Defendant to give notice. **MOTION NO. 3:** Defendants Sun Mar Management Services and Sun Meridian Management Services LLC’s move to strike portions of the Second Amended Complaint. *Punitive Damages:* Defendants move to strike the allegations and prayer for punitive damages as to the first cause of action. Civil Code Section 3294, subdivision (a) provides for punitive damages: “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’

		means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." The SAC alleges that "Knowing of MOHLER's repeated urinary tract infections, dehydration, sepsis, and declining condition, and despite clear notice that existing staffing levels were inadequate to meet her basic needs, DEFENDANTS' managing agents… failed to take corrective action." (SAC ¶69.) These allegations are sufficient to allege conduct demonstrating conscious disregard of the rights or safety of others. **Tentative Ruling:** The request to strike punitive damages is DENIED *Attorneys' Fees:* Defendants move to strike the request for attorneys' fees as to the first cause of action. Based on the court's overruling of Defendants' demurrer to the first cause of action, the request to strike attorneys' fees requested by Plaintiffs in the first cause of action is DENIED. Moving Defendants to give notice.
6	**Ornelas vs. Madison Reed, Inc.** **2025-01494153**	**Motion to Compel Arbitration** Defendant Madison Reed, Inc.'s moves to Compel Individual Arbitration.

		Defendant seeks to compel Plaintiff Sarah Ornelas to submit all causes of action pleaded in her Complaint to binding arbitration on an individual basis. Defendant prevents evidence that Plaintiff electronically signed an arbitration agreement on 10/4/22 as part of the onboarding process when she was hired by Defendant. (Papania Decl., ¶¶ 11-14, Exs. C-E.) The agreement states that it is “governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. and evidences a transaction involving commerce.” (Papania Decl., ¶ 11; Ex. D, § 1, p. 9.) The agreement includes a delegation clause, which states that “the Arbitrator, and not any court, shall have exclusive authority to resolve any dispute relating to the validity, applicability, enforceability, or waiver of this Agreement, including, but not limited to any claim that all or any part this Agreement is void or voidable. However, as stated in the ‘Class and Collective Action Waivers’ section below, the preceding sentence does not apply to the Class Action Waiver and/or Collective Action Waiver.” (Papania Decl. ¶ 11; Ex. D, § 1, p. 9.) The arbitration agreement also includes a 30-day opt out provision. (Papania Decl. ¶ 11, Ex. D, § 10, p. 12.) Plaintiff concedes she electronically signed the arbitration agreement and did not opt out within the 30-day period. (See Opp., p. 2:18-3:8.) Nor does Plaintiff dispute that the FAA applies. Plaintiff’s only argument against enforcement is that the delegation clause and the arbitration agreement are each unconscionable. Parties to an arbitration agreement may agree to delegate any challenges to the arbitration agreement to the arbitrator, including the threshold arbitrability question. (Henry Schein, Inc. v. Archer & White Sales, Inc. (2019) 586 U.S. 63, 65.) “There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 242 citing Rent–A–Center, West, Inc. v. Jackson (2010) 561 U.S. 63, 68-69, fn. 1 (Rent-A-Center).) “[A]ny claim of unconscionability must be specific to the delegation clause.” (Tiri, supra, 226 Cal.App.4th at p. 244 [emphasis in original].)

		Plaintiff does not dispute that the language of the delegation clause is clear and unmistakable. Therefore, the first prerequisite is satisfied. Plaintiff argues the delegation clause is procedurally unconscionable because it is embedded within the same adhesive, densely worded arbitration agreement. Plaintiff is correct. (See Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 245-246 [holding delegation clause contained in arbitration agreement presented on a take it or leave it basis was procedurally unconscionable]; see also Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 794, fn. 11 [same].) Plaintiff argues the delegation clause is substantively unconscionable because it contains a carve-out for the class action waiver. According to Plaintiff, this carve-out creates a one-sided procedural framework designed to maximize Defendant's ability to enforce individualized arbitration and minimize aggregate exposure. The court disagrees. The carve-out for class action waivers benefits employees by ensuring that any unlawful waiver of class or representative rights receives judicial scrutiny. The Ninth Circuit reviewed a similar delegation clause with a class action carve-out and explained the requirement to enforce the delegation clause: "The delegation provisions clearly and unmistakably delegated the question of arbitrability to the arbitrator for all claims except challenges to the class, collective, and representative action waivers in the 2013 Agreement. In accordance with Supreme Court precedent, we are required to enforce these agreements 'according to their terms' and, in the absence of some other generally applicable contract defense, such as fraud, duress, or unconscionability, let an arbitrator determine arbitrability as to all but the claims specifically exempted by the 2013 Agreement." (Mohamed v. Uber Technologies, Inc. (9th Cir. 2016) 848 F.3d 1201,1209, citing Rent–A–Center, supra, 561 U.S. at p. 67.) The court finds the delegation clause is not substantively unconscionable. (See Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114 ["both procedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or

		clause under the doctrine of unconscionability." (emphasis in original)].) Since both prerequisites have been satisfied, the delegation clause is enforceable and the arbitrator, not the court, must determine whether the Arbitration Agreement is unconscionable. **Tentative Ruling:** The motion is GRANTED. This action is stayed pending the outcome of arbitration. Moving party to give notice.
7	**Quijano vs. Mission Hospital Regional Medical Center** **2025-01517956**	**1. Demurrer to Amended Complaint** **2. Case Management Conference** The Defendant Mission Hospital Regional Medical Center dba Providence Mission Hospital Mission Viejo demurs to First Amended Complaint ("FAC"). *Legal Standard:* At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs' asserted claims. (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 919.) "A demurrer must dispose of an entire cause of action to be sustained. Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 451–452 [cleaned up].) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. If the complaint states a cause of action under any theory, regardless

		of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer. [¶] The courts of this state have long since departed from holding a plaintiff strictly to the form of action that has been pleaded and instead have adopted the more flexible approach of examining the facts alleged to determine if a demurrer should be sustained. Where, as here, the demurrer is based on a claim that the pleading does not state facts sufficient to constitute a cause of action, if it appears that the plaintiff is entitled to any relief at the hands of the court against the defendants, the complaint will be held good, although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged. [¶] In reviewing the legal sufficiency of a demurrer, we are not concerned with plaintiff's ability to prove the allegations of the complaint, or the possible difficulties in making such proof." (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1268 [cleaned up].) *Summary of Elements of Elder Abuse Claim:* Mission Hospital demurs to Plaintiffs' second cause of action for Violations of Elder Abuse and Dependent Adult Civil Protection Act on the grounds that this claim is duplicative, uncertain, and fails to state sufficient facts. (Motion, p. 3.) "The Elder Abuse Act's heightened remedies are available only in limited circumstances. A plaintiff must prove, by clear and convincing evidence, that a defendant is liable for either physical abuse under section 15610.63 or neglect under section 15610.57, and that the defendant committed the abuse with 'recklessness, oppression, fraud, or malice.' (§ 15657.) Section 15610.57, in turn, provides two definitions of neglect. First, '[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.' (§ 15610.57, subd. (a)(1).) Second, '[t]he negligent failure of an elder or dependent adult to exercise

		that degree of self care that a reasonable person in a like position would exercise.' (Id., subd. (a)(2).)" (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 156.) "In order to obtain the remedies available in section 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct. The latter three categories involve 'intentional,' 'willful,' or 'conscious' wrongdoing of a 'despicable' or 'injurious' nature. (Civ.Code, § 3294, subd. (c); see also *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721, 34 Cal.Rptr.2d 898, 882 P.2d 894.) 'Recklessness' refers to a subjective state of culpability greater than simple negligence, which has been described as a 'deliberate disregard' of the 'high degree of probability' that an injury will occur (BAJI No. 12.77 [defining the 'recklessness' in the context of intentional infliction of emotional distress action]); see also Rest.2d Torts, § 500.) Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.'" (*Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32.) "Section 15657.2 can therefore be read as making clear that the acts proscribed by section 15657 do not include acts of simple professional negligence, but refer to forms of abuse or neglect performed with some state of culpability greater than mere negligence." (*Id*. at 32.) *<u>Application:</u>* In this cause of action, Plaintiffs allege decedent Jessica Quijano was a dependent adult admitted as an inpatient to Mission Hospital (abbreviated as "PMH" in the FAC) on 6/8/25. (FAC, ¶ 46.) Plaintiffs allege Defendants violated the Elder Abuse Act and/or ratified violations of the Act by "failing to provide JESSICA with adequate supervision and assistance to keep her safe and protect her from the negligent failure to appropriately treat, manage, care, and

		diagnose JESSICA before, during, and after her cardiac arrest in the Emergency Department at PMHMV on June 8, 2025, failing to provide her with adequate custodial care, and failing to protect her from health and safety hazards while she was in their care and custody, in violation of Welfare and Institutions Code § 15610.57." (¶¶ 48-54.) Defendant contends this is a "straightforward wrongful death action" based on medical negligence, which should be subject to damage cap restrictions on medical malpractice claims under California's Medical Injury Compensation Reform Act ("MICRA"). Defendant argues Plaintiffs are attempting to "inflate the value of this case" by seeking enhanced damages under the Elder Abuse Act when "the allegations in the FAC amount to medical negligence, if that…" (Motion, p. 1.) Specifically, Defendant contends Plaintiffs fail to allege specific facts showing "reckless, oppressive, fraudulent, or malicious conduct" involving physical abuse or neglect of decedent. (Motion, p. 3.) Defendant further argues this cause of action is "mutually exclusive and/or duplicative" of Plaintiff's first claim for wrongful death. (Motion, p. 6.) Rather, Defendant asserts that at most, Plaintiff has alleged professional negligence falling within MICRA, not the heightened standard of abuse or neglect under the Elder Abuse Act. In opposition, Plaintiffs argue they adequately allege facts demonstrating dependent abuse or neglect, including the following allegations in paragraphs 27-29 related to withdrawal of life support: "27. As result of negligent care before during and after her cardiac arrest in the Emergency Dept., JESSICA suffered severe permanent hypoxic-ischemic brain injury.

		28. Despite multiple ECG's performed after her cardiac arrest which showed cardiac ischemia, none of the physicians who treated JESSICA, including Dr. Quershi and Dr. Shakeel, diagnosed her cardiac ischemia or requested a cardiology consult. 29. Instead on June 23, 2025, at the specific request of Dr. Qureshi, the Ethics Committee recommended activation of the non-beneficial treatment policy and placed a DNR (Do Not Resuscitate) on JESSICA's chart which was objected to by WILBERT, who was given 5 days to agree to turning off life support or JESSICA's treating doctors would disconnect the ventilator over the objection of WILBERT." Plaintiffs argue, "These are not allegations of mere negligent medical judgment. Plaintiffs expressly allege Defendant initiated a process to terminate life-sustaining treatment and withdraw ventilatory support from a dependent adult despite family objection. The threatened removal of life support constitutes withholding of necessary medical care and custodial protection sufficient to plead neglect under Welfare and Institutions Code section 15610.57." (Opp. at p. 7:1-5.) In reply, Mission Hospital asserts that these allegations involve "professional decision-making" under the hospital's standard ethics process implemented to avoid providing medically ineffective treatment, not "statutory neglect or abuse." (Reply, pp. 2-3.) Moreover, there was no actual disconnection of life support or abandonment of care. Defendant cites *Alexander v. Scripps Memorial Hospital La Jolla* (2018) 23 Cal.App.5th 206, 223, in which the appellate court upheld the sustained demurrer where the hospital allegedly delayed transfer to another hospital by approximately one day and "administered drugs to Elizabeth to hasten her death and withheld nutrition, hydration, and pain medication." (Opp. at p. 3.) There, the appellate court held, "although Plaintiffs alleged Defendants failed to facilitate Elizabeth's transfer to another facility and

		withheld pain medication, nutrition, and fluids, the third amended complaint is replete with references to the extensive medical care Elizabeth received during her four-day hospitalization." (*Ibid*.) At this stage, Defendant has not shown that *Alexander* is on point based on Plaintiff's allegations that Defendant wrongfully attempted to withdraw life support. While Defendant may assert there were appropriate bases to make such a decision, the Court cannot consider such evidence that this stage. "[C]ourts may not turn a demurrer into a contested evidentiary matter by determining what the proper interpretation of the evidence is. A court errs when its decision reflects such a consideration of the evidence." (*Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 711 [cleaned up].) "A plaintiff is permitted to plead alternative inconsistent theories." (*Dubin v. Robert Newhall Chesebrough Trust* (2002) 96 Cal.App.4th 465, 477.) "Pleading alternative theories of recovery "does not run afoul of truthful pleading." (*Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 711, fn. 10.) Here, liberally construing the complaint and drawing all reasonable inferences in Plaintiffs' favor as the Court is required to do at this stage, Plaintiff has adequately alleged facts which could show that Mission Hospital engaged in reckless or conscious dependent abuse or neglect under Plaintiffs' second cause of action. (See *Liapes v. Facebook, Inc.*, *supra*, 95 Cal.App.5th at 919.) This includes Plaintiffs' allegation that Mission Hospital attempted to wrongfully withdraw life support from decedent over the objections of decedent's husband, when in fact decedent was able to survive for several months thereafter. At this stage, Plaintiffs are permitted to plead alternative theories of liability against moving Defendant. **Tentative Ruling:** Demurrer to First Amended Complaint ("FAC") by Defendant Mission Hospital Regional Medical Center dba

		Providence Mission Hospital Mission Viejo (“Mission Hospital”) is OVERRULED.
8	**Rivas vs. Hurtado** **2021-01225380**	**Motion to Be Relieved as Counsel of Record** Mr. Madoni has established good cause for counsel to withdraw. He asserts a conflict of interest has arisen that cannot be waived. Moving attorney has shown that he has complied with all the requirements of the California Rules of Court, Rule 3.1362 and filed all the required forms. **Tentative Ruling:** The motion of attorney Stephen A. Madoni to withdraw as attorney of record for Defendant/Cross-Complainant Susana Hurtado is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
9	**Sozer vs. Yoshiharu Global Co.** **2024-01427440**	**Motion to Be Relieved as Counsel of Record** Off Calendar
10	**Technology Insurance Company Inc vs. Ital Pizza LLC** **2023-01339446**	**Motion for Entry of Judgment** Plaintiff moves for Entry of Judgment on Settlement Agreement Code of Civil Procedure section 664.6 states,

		"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." On 1/5/26, Plaintiff filed a notice of conditional settlement based on the parties' agreement in which Defendants agreed to make 12 monthly payments of $3,750 commencing 1/15/25. The settlement agreement provided for the Court to retain jurisdiction under Code of Civil Procedure section 664.6. (Ex. A, ¶ 3(C).) Plaintiff's counsel declares that Defendants made $7,500 in payments then ceased making the remaining payments. Defendants have not responded to Plaintiff's counsel's notice of default and Defendants have not filed an opposition to the motion. **Tentative Ruling:** Plaintiff's Motion for Entry of Judgment on Settlement Agreement is GRANTED. The Court enters judgment pursuant to the parties' settlement agreement attached as Exhibit A to the motion.
11	**Truong vs. Le** **2020-01149479**	**Motion for Attorney Fees** Defendant Phillip Bui Le moves for Attorneys' Fees and Costs After Judgment. . Defendant seeks $49,259.50 in attorneys' fees and $11,690.94 in costs for a total of $60,950.44 in connection with his defense of Plaintiff's partition action. (Defendant erroneously requests a total of $60,960.44.)

		Legal standard The costs of partition include, among other items, the "[r]easonable attorney's fees incurred or paid by a party for the common benefit," and "[o]ther disbursements or expenses determined by the court to have been incurred or paid for the common benefit." (Code Civ. Proc., § 874.010, subds. (a), (e).) The costs of partition also include "reasonable expenses, including attorney's fees, necessarily incurred by a party for the common benefit in prosecuting or defending other actions or other proceedings for the protection, confirmation, or perfection of title . . . ." (Code Civ. Proc., § 874.020.) "[T]he 'common benefit' in a partition action is the proper distribution of the 'respective shares and interests in said property by the ultimate judgment of the court.'" This sometimes will require that 'controversies' be 'litigated' to correctly determine those shares and interests, but this ultimately can be for the common benefit as well. The fact that a party resists the partition does not change this." (Orien v. Lutz (2017) 16 Cal.App.5th 957, 968 [cleaned up].) Defendant contends its "defense was vital to discern and prove the true owner of the property was Intervenor Kathy Nguyen and therefore was for the common benefit of the property. Le's actions contributed to the resolution of the ownership dispute concerning the Subject Property and conferred a common benefit." (Mtn. at 7:4-9.) Here, following a bench trial, the Court found intervenor Kathy Nguyen was the owner of full 100% beneficial and legal title of the property. Plaintiff did not file an opposition to the motion and thus does not dispute Defendant's contention this finding was for the "common benefit" as it determined the proper distribution of the property's interests. Section 874.040 provides, "Except as otherwise provided in this article, the court shall apportion the costs of partition among the

		parties in proportion to their interests or make such other apportionment as may be equitable." "[S]ection 874.040] simply states that the trial court must apportion the costs incurred in a partition action based upon either the parties' interests in the property, or equitable considerations. The statute's broad language does not limit the trial court's equitable discretion . . . ." (Lin v. Jeng (2012) 203 Cal.App.4th 1008, 1025, emphasis in original.) Here, following the bench trial, the Court found: - Truong testified he obtained $50,000 for the $100,000 downpayment from a friend, which he paid to Le. The "friend" did not testify, nor did Truong have any documentation of the $50,000 or the transfer to Le. - Truong testified the other $50,000 came from Chanh, but he did not know where she got it. - Truong admitted making no mortgage payments (but for three initial payments in an amount what was incorrect and for which there was no documentary support), making no tax, insurance, utility payments, or any contribution toward remodeling the property. - Conversely, Kathy, Chanh, and Le testified the property was purchased for Kathy to be the beneficial owner, that because Kathy had bad credit, Le (her brother-in-law) was to be on the loan and have legal title, and that Truong was named on legal title to protect Kathy should some fallout occur with Le. - Kathy, Chanh, and Le each testified the down payment funds came as part of a $250,000 gift from Chanh to Kathy. - Kathy provided testimony and extensive documentation demonstrating she made all payments for the mortgage, taxes, insurance, utilities, and remodel expenses and that she made all decisions regarding management of the property. (Martinez Decl., ¶ 6, Ex. 1, ROA 204.)

		Ultimately, the Court found “[a]ll this evidence offered by Kathy, Chanh and Le is consistent and is opposed only by Truong’s self-serving testimony without documentation. This evidence is clear and convincing in support of a Resulting Trust in favor of Kathy.” (Martinez Decl., ¶ 6, Ex. 1, ROA 204.) The Court’s findings and ruling demonstrate given the evidence and testimony Truong was likely well aware he was not entitled to a 50% share of Kathy Nguyen’s 100% interest in the property. As set forth above, section 874.040 provides the court may also “make such other apportionment as may be equitable.” The Court therefore finds Defendant is entitled to attorneys’ fees and apportions the cost of those fees to Plaintiff. (See Lin v. Jeng (2012) 203 Cal.App.4th 1008, 1025-1027.) Lodestar calculation “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.’” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41 [citations omitted) Defendant seeks fees in the amount of $49,259.50 based on 139.05 hours of attorney and staff work on this matter. (Martinez Decl., Ex. 3.) Hourly rates of $525 for attorneys, $275 for paralegals, and $200 for law clerks (Martinez Decl., ¶ 8) appear to be reasonable for this type of litigation in the local legal community. The hours spent litigating this matter, which included discovery, motion practice, and trial (Martinez Decl., ¶¶ 4-7), also appear reasonable. Defendant also seeks $11,690.94 in costs. (Martinez Decl., ¶ 9.) While Defendant sets forth the items comprising the costs

		(Mtn. at 9:4-10:4), these items total $10,410.61, not $11,690.94. Given no opposition, Plaintiff does not dispute the fees and costs sought. Accordingly, the Court awards Defendant $49,259.50 in attorneys' fees and $10,410.61 in costs for a total of $59,670.11. **Tentative Ruling:** The Court GRANTS Defendant Phillip Bui Le's Motion for Attorneys' Fees and Costs After Judgment in the reduced amount of $59,670.11.